

MEASURES

PASSED BY THE NATIONAL ASSEMBLY OF THE
CHURCH OF ENGLAND WHICH RECEIVED
THE ROYAL ASSENT DURING THE
YEAR 1927.

17 & 18 GEO. 5.

No. 1.

A MEASURE passed by the National Assembly
of the Church of England

To provide for the dissolution of the legal union
between the Church of England and the Church
of England in India, and to make provisions
consequential thereon. [23rd November 1927.]

WHEREAS it is expedient that the legal union
between the Church of England and the Church
of England in India shall be dissolved, and that provision
should at the same time be made for the last-mentioned
Church as proposed to be constituted after the dissolu-
tion of the said union :

And whereas a petition to that effect has been
presented to the Church Assembly by the General Council
of the Church of England in India :

And whereas the Secretary of State in Council of
India and the Governor-General of India in Council, and
the Archbishop of Canterbury, and the bishops and duly
appointed representatives of the clergy and laity of the
Church of England in India in Council assembled, have
approved the dissolution of such union :

1. In this Measure—

the expression “ date of severance ” means such
day not less than two years or more than three
years after the coming into operation of this
Measure as the Governor-General of India in

Interpreta-
tion.

Council at the request of the General Council shall fix for the dissolution of such union as aforesaid;

- the expression “ Indian Church ” means, in respect of the period before the date of severance the Church of England in India, and in respect of the period commencing on the date of severance, the Church of England in India as severed from the Church of England, notwithstanding the adoption by the said Church of any other name or names;
- the expression “ rule ” includes canon, article, declaration, constitution, and regulation;
- the expression “ the rules of the Indian Church ” means the ecclesiastical law and the articles, canons, doctrines, rites, rules, discipline and ordinances of the Indian Church existing at the date of the passing of this Measure with and subject to such modification or alteration, if any, as may after the passing of this Measure be duly made therein by the Indian Church;
- the expression “ Bishop of Calcutta ” means the occupant for the time being of the See of Calcutta, whether or not that See is constituted an archiepiscopal see;
- the expression “ General Council ” means the body recognised as such by the Bishop of Calcutta.

Dissolution
of union
between
the Indian
Church and
the Church
of England.

2. Upon the date of severance the union legally existing between the Church of England and the Church of England in India shall be dissolved, and—

- (i) The enactment mentioned in the first column of the schedule to this Measure shall be repealed to the extent mentioned in the third column of the said schedule;
- (ii) The Metropolitan Bishop of the Indian Church shall not, in contemplation of the law, be subject to the general superintendence and revision of the Archbishop of Canterbury, and the obtaining of the Royal Mandate to consecrate shall not be necessary in the case of the consecration of a bishop for a charge in India, nor shall the Bishops in Foreign Countries Act, 1841, apply to the consecration of any such bishop, nor shall

any bishop of any diocese in England have any jurisdiction over the Indian Church in India ;

- (iii) No ecclesiastical court or official of the Indian Church shall have or exercise any coercive jurisdiction ;
- (iv) The ecclesiastical law of the Church of England, so far as it exists in India, shall in India cease to exist as law ; and no proceeding by way of rehearing or appeal from any decision, judgment, sentence, decree or other order of any ecclesiastical court or official of the Indian Church shall be entered, admitted, prosecuted, heard or determined in, by or before any of His Majesty's Courts of Justice in India or elsewhere, any Court of Commissioners delegate in India, or His Majesty in Council ;
- (v) The rules of the Indian Church shall be binding on the members thereof for the time being in the same manner as if they had mutually agreed to be so bound, and shall be capable of being enforced in the temporal courts in relation to any property lawfully held on behalf of the said Church or any members thereof in the same manner and to the same extent as if such property had been expressly assured upon trust to be held on behalf of persons who should be so bound.

As in the respects particularly in this section mentioned, so in all other respects the Church of England and the Indian Church shall, as from the date of severance, be legally severed, separate and distinct, and every law and custom shall, except as in this Measure expressly provided, be interpreted and applied accordingly.

3.—(1) From and after the coming into operation of this Measure nothing in any Act of Parliament, law or custom, shall prevent the General Council from making, amending or repealing rules for the general management and good government of the Indian Church and the property and affairs thereof, whether in respect of the whole of the said Church, or according to provinces or dioceses or other areas, and rules so made may provide for the future making, amending or repealing of rules for the like purposes and prescribe the persons or bodies by whom, or by which, such rules may be made, amended or repealed :

Provisions
for the con-
stitution of
the Indian
Church.

Provided that no rules so made shall come into operation before the date of severance.

(2) From and after the date of severance nothing in any Act of Parliament, law or custom, shall prevent the bishops, clergy and laity of the Indian Church from holding synods, councils or assemblies whether general, provincial, diocesan, or according to other areas, or from electing representatives thereto; or any such synod, council or assembly from acting in accordance with the rules of the Indian Church for the time being.

(3) Any rule of the Indian Church made by any synod, council, assembly or officer thereof shall not, after the date of severance, be subject to any legal limitation in respect to scope or effect (whether arising from the operation of an Act of Parliament or otherwise) other than such as would apply to the like rule if made by a voluntary association altogether distinct from the Church of England which should have come into existence on the date of severance :

Provided always that nothing in this section shall be deemed to confer upon the General Council or enable it to confer upon any other person or body of persons any coercive jurisdiction, without prejudice, however, to the operation of the law relating to obligations binding on persons who shall be deemed, in accordance with subsection (v) of section 2 of this Measure, to have mutually agreed to be bound by any such rule.

Member-
ship of the
Indian
Church, how
proved.

4.—(1) If for any temporal purpose in connection with this Measure, or if in any proceedings in any temporal court, it shall be necessary to determine whether any person is, or at any past date was, a member of the Indian Church or of any Church in communion therewith, a certificate under the hand of the Bishop of Calcutta stating that such person is or is not, or was or was not on a named past date, a member of the Indian Church or of a Church in communion therewith, shall conclusively determine the fact stated therein.

(2) A certificate purporting to be made and signed by the said Bishop shall be deemed to have been made and signed by him until the contrary be shown.

Recognition
of General
Council.

5.—(1) The recognition of the General Council as such by the Bishop of Calcutta shall be sufficiently proved for all purposes by an expression of that recognition in writing under the hand of such Bishop; and if any

question at any future time shall arise as to whether any assembly was or was not the General Council for the purposes of this Measure, whether generally, or on a particular occasion, or at a particular time, such question shall be referred to the Bishop aforesaid, and by him finally decided.

(2) (i) A document purporting to be a writing under this section, and to be signed by the Bishop of Calcutta shall be deemed to be such and to have been made and signed by him until the contrary be shown.

(ii) No proceedings of the General Council, in pursuance of this Measure, shall be invalidated by any vacancy in the membership of that Council or by any defect in the qualification or election of any member thereof.

6. Nothing in this Measure or in any Act of Parliament shall prevent any person who is or has been Bishop of any diocese in India from performing episcopal functions, not extending to the exercise of jurisdiction, in any diocese or reputed diocese at the request of the Bishop thereof. Saving
right of
Bishops.

7. This Measure shall come into operation on a date to be fixed by His Majesty in Council, but no date shall be so fixed unless and until an Act of Parliament is passed providing for the repeal of Part X. of the Government of India Act so far as it relates to the Church of England.* Date of
coming into
operation.

8. This Measure may be cited as the Indian Church Measure, 1927. Short title.

THE SCHEDULE.

Section 2.

ENACTMENT REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Vict. c. 52.	The Colonial Bishops Act, 1852.	In section one the words "by " virtue of such Royal Letters " Patent under the Great " Seal of the said United " Kingdom."

* The date thus fixed was January 1, 1928; see the Order in Council, S. R. & O., 1927, No. 1231. For the Act of Parliament, see 17 & 18 Geo. 5. c. 40.